

Multiple Choice (10 marks)

1. Which statement is closest to characterizing the principal difference between the positions adopted by Hobbes and Locke?
 - (a) They adopt different attitudes towards the role of the courts in maintaining order.
 - (b) They disagree about the role of law in society.
 - (c) They have opposing views about the nature of contractual obligations.
 - (d) They differ in respect of their account of life before the social contract.
2. How does Nozick answer the criticism of his historical entitlement theory that if the distribution of goods in society is unjust those at the bottom always lose?
 - (a) It can be remedied by redistribution of wealth.
 - (b) If each person's holdings are just, then the total distribution of holdings is just.
 - (c) Historical factors are secondary to moral imperatives.
 - (d) He has no answer.
3. Which of the following most accurately describes Hart's response to Fuller's argument concerning the invalidity of Nazi law?
 - (a) The Nazi law in question was validly enacted.
 - (b) The court misunderstood the legislation.
 - (c) Fuller misconstrued the purpose of the law.
 - (d) The Nazi rule of recognition was unclear.
4. What is passive personality jurisdiction?
 - (a) It is jurisdiction based on the nationality of the offender
 - (b) It is jurisdiction based on where the offence was committed
 - (c) It is jurisdiction based on the nationality of the victims
 - (d) It is jurisdiction based on the country where the legal person was Registered
5. Who said that "Jurisprudence is the eye of law"
 - (a) Maine
 - (b) Savigny
 - (c) Pound
 - (d) Laski

True / False (10 marks)

Answer True or False

6. True or False: Jurisdiction is ordinarily determined by the location of the offender, regardless of where the offense occurred.
7. True or False: John Austin wrote 'The Concept of Law', which outlines his legal positivism theory.
8. True or False: The people in the original position would likely choose equality above liberty as a foundational principle.
9. True or False: Austin argued that law is merely a collection of commands issued by a sovereign authority without regard to justice.
10. True or False: Third generation rights are considered more important than civil and political rights according to the UN Vienna Declaration.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the characterization of Austin as a 'naive empiricist' in constitutional law, focusing on his pragmatic approach to understanding laws rather than a conceptual one.
12. Discuss Ronald Dworkin's criticism of Richard Posner's economic analysis of law, particularly his assertion that wealth cannot be regarded as a fundamental value. What are the implications of this critique?

End of Paper